

Ram Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 June 2019 · WRIT-C No. 19813 of 2019 · WRIT - C No. 19813 of 2019 · **Writ dismissed; petitioner relegated to s.127 appeal.**

HEADNOTE

Once a final electricity assessment is produced, a writ seeking to quash it is not entertained. The consumer is relegated to the statutory appeal under Section 127; the appellate authority may decide the appeal in accordance with law. The Court described that appeal as lying under Section 127 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Chandra sought quashing of an electricity assessment of Rs.10,25,150 plus Rs.22 other charges. After an adjournment for production of the final order, the licensee's counsel produced a final assessment dated 13 May 2019, said to have been sent by registered post on 15 May 2019, and supplied a copy in court. The petitioner denied receipt, alleged that his 28 March 2019 objection had not been considered, and relied on Meenu Gupta and Ashok Kumar.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

alternative remedy — appeal against final assessment

HOLDING

A writ petition challenging a final electricity assessment will not be entertained when a statutory appeal under Section 127 is available. The petition is dismissed on the ground of alternative remedy; the consumer may approach the appellate authority, who may decide the appeal in accordance with law. ¶ 1

FLAG Court attributed Section 127 to the Electricity Supply Code, 2005; the statutory appeal is under EA 2003 s.127.

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal Once a final electricity assessment is produced, a writ seeking to quash it is not entertained. The consumer is relegated to the statutory appeal under Section 127; the appellate authority may decide the appeal in accordance with law.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT SUFFERED FROM NON-APPLICATION OF MIND FOR NOT CONSIDERING THE PETITIONER'S OBJECTION DATED 28.03.2019

Left to the s.127 appellate authority ¶ 1

NOT DECIDED — WHETHER THE CONTROVERSY WAS COVERED BY MEENU GUPTA OR ASHOK KUMAR

¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Meenu Gupta v. State of U.P.</i> Writ-C No. 3872 of 2018, decided on 31.1.2018			petitioner	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 (DB)			petitioner	Referred

SCJ-2014 · Ram Chandra v. State of U.P. · WRIT-C No. 19813 of 2019 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.